

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents and Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,

Third-Party Respondent.

**THIRD-PARTY RESPONDENT'S OPPOSITION TO RESPONDENTS' MOTION FOR
ALTERNATIVE SERVICE**

HOHENSTEIN & PARKINSON, LLP
James H. Hohenstein
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawnyc.com

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

TABLE OF CONTENTS

	Page
TABLE OF AUTHORITIES	ii
PRELIMINARY STATEMENT	1
INTRODUCTION	1
ARGUMENT	2
I. Hague Convention Procedures Will Cause No “Excess Use” of FMC Resources.	2
II. Other U.S. Litigation involving SEC is of No Relevance.	3
III. The Hague Convention Applies Here.	4
IV. Alternative Service is Neither Justified nor Appropriate in this Matter.	5
CONCLUSION	10

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>Agrana Fruit US, Inc. v. Ingredientrade, Inc.</i> , 23 Civ. 10147(ALC)(GS), 2024 WL 773643 (S.D.N.Y. Feb. 26, 2024)	8
<i>Asia Maritime Pacific Chartering Ltd. v. Comercializadora Columbia S.A. de C.V.</i> , No. 22-CV-10789(RA), 2023 WL 372880 (S.D.N.Y. Jan. 23, 2023)	8
<i>Barber v. New Jersey</i> , Civil Action No. 24-3202(ZNQ)(RLS), 2024 WL 4563911 (D.N.J. Oct. 24, 2024)	3, 4
<i>Brockmeyer v. May</i> , 383 F.3d 798 (9 th Cir. 2004)	5
<i>Carrico v. Samsung Electronics Co., Ltd.</i> , Case No. 15-cv-02087-DMR, 2016 WL 2654392 (N.D. Calif. May 10, 2016)	6
<i>Compañía de Inversiones Mercantile, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.</i> 970 F.3d 1269 (10 th Cir. 2020)	6
<i>Devi v. Rajapaska</i> , No. 11 Civ. 6634(NRB), 2012 WL 309605 (S.D.N.Y. Jan. 31, 2012), <i>appeal dismissed</i> , No. 12-4081, 2013 WL 3855583 (2d Cir. Jan. 30, 2013)	7
<i>Dolls Kill, Inc. v. Yunye Apparel Retail, Ltd.</i> , Case No. 2:23-cv-01979-HDV-JPR, 2023 WL 6192699 (C.D. Calif. Aug. 16, 2023)	5, 6
<i>Facebook, Inc. v. 9 Xiu Network (Shenzen) Technology</i> , 480 F. Supp. 3d 977 (N.D. Cal. 2020)	4, 9
<i>Federal Trade Commission v. Repair All PC, LLC</i> , Case No. 1:17 CV 869, 2017 WL 2362946 (N.D. Ohio May 31, 2017)	5
<i>Gang Chen v. China Green Agric., Inc.</i> , No. 20 Civ. 9232 (MKV), 2021 WL 103306 (S.D.N.Y. Jan. 6, 2021), <i>appeal dismissed</i> , No. 22-1952-cv, 2023 WL 8539368 (2d Cir. Dec. 11, 2023)	7
<i>In re: One Apus Container Ship Incident</i> , 22 Md. 3028 (PAE), 2022 WL 17370122 (S.D.N.Y. Dec. 2, 2022)	6

<i>KG Marine, LLC v. Vicem Yat Sanayi Ve Ticaret AS</i> , 224 F. Supp. 3d 312 (W.D.N.Y. 2014).....	8
<i>Knox v. Summers</i> , 7 U.S. 496, 3 Cranch 496, 2 L.Ed 510 (1806)	10
<i>Nexxon Korea Corporation v. Ironmace Co., Ltd.</i> , Case No. C23-576-MLP, 2023 WL 3599548 (W.D. Wash. May 23, 2023), <i>aff'd</i> , No. 23-35600, 2024 WL 3493002 (9 th Cir. Jul. 22, 2024).....	6, 7
<i>Noco Company v. CF Group SZKMS Co., Ltd.</i> , 571 F. Supp. 3d 862 (N.D. Ohio 2021)	5, 6
<i>Prem Sales, LLC v. Guangdong Chigo Heating and Ventilation Co., Ltd.</i> , 494 F. Supp 3d 404 (N.D. Texas 2020)	4
<i>Rio Properties, Inc., v. Rio International Interlink</i> , 284 F. 3d 1007 (9 th Cir. 2002).....	6
<i>Samsung Elecs. America, Inc. v. Orient Overseas Container Line, Limited et al.</i> , Dkt. No. 24-17, 2025 WL 516252 (FMC Feb. 13, 2025).....	3
<i>Sec. and Exch. Comm’n v. Richman</i> , Case No. 21-cv-01911-CRB, 2021 WL 9816612 (N.D. Calif. Jul. 19, 2021).....	6
<i>Smart Study Co., Ltd. v. Acuteye US</i> , 620 F. Supp. 3d 1382 (S.D.N.Y. 2022), <i>appeal dismissed</i> , 22-1810-cv, 2023 WL 3220461 (2d. Cir. May 3, 2003)	4
<i>Stebbins v. Garcia Baz</i> , Case No. 24-cv-00398-LJC, 2024 WL 3447507 (N.D. Calif. Jul. 16, 2024)	9
<i>Topping v. Deloitte Touche Tohmatsu CPA Ltd.</i> , 14 Civ. 2814(ER), 2014 WL 13118091 (S.D.N.Y. Oct. 3, 2014)	8
<i>Topstone Communications, Inc. v. Chenyi Xu</i> , 603 F. Supp. 3d 493 (S.D. Tex. 2022).....	9
<i>Ultra Int’l Music Publishing, L.L.C. v. Sony Music Enter.</i> , 24 Civ. 9149 (RA)(GS), 2025 WL 670842 (S.D.N.Y. Mar. 3, 2025)	7, 8
<i>Volkswagenwerk Aktiengesellschaft v. Schlunk</i> , 486 U.S. 694 (1988).....	4
<i>Water Splash Inc. v. Menon</i> , 581 U.S. 271 (2017).....	4

<i>Williams v. Bellagio Hotel & Casino</i> , 728 F. Supp. 3d 1166 (D. Nev. 2024).....	5
--	---

Rules and Regulations

Fed. R. Civ. P. 4(f).....	5, 6, 7
Fed. R. Civ. P. 12(b)(5)	9
46 C.F.R. § 502.113	<i>passim</i>
46 C.F.R. § 502.69.....	10
46 C.F.R. § 502.71	10

Treaty

Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638	<i>passim</i>
---	---------------

PRELIMINARY STATEMENT

Third-Party Respondent Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. (“Third-Party Respondent” or “SEC”), having specially appeared by its undersigned attorneys for the limited purpose of filing SEC’s Motion to Dismiss the Third-Party Complaint of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL” or “Respondents”)(Doc. No. 32), respectfully submits this opposition to the Motion for Alternative Service filed by Respondents (Doc. No. 56)(“Alt. Svc. Mem.”).¹

INTRODUCTION

OOCL presents no supported argument that the Hague Convention is inapplicable in this matter. Instead, OOCL argues that to require it to follow the law and serve the Third-Party Complaint under the procedures of the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638 (the “Hague Convention”) would, *inter alia*, be an “excess use” of the Commission’s resources: there is no merit to this argument. Further, OOCL asserts that as SEC has waived the provisions of the Hague Convention in other U.S. litigation, the Hague Convention may be ignored here: this argument is also without merit. As to the precedent cited for the proposition that the various courts have allowed alternative service where otherwise the Hague Convention would apply, as will be presented below, the precedent, when properly considered, provides no legitimate support for the relief sought by OOCL.

What is also key in this matter is the fact that to date there has been no service pursuant to 46 C.F.R. § 502.113(b) on SEC as the Secretary’s mailings have been returned (Secretary’s Letters

¹ By filing this opposition, SEC does not intend to make a general appearance in this matter, nor does SEC intend to waive its Motion to Dismiss (Doc. No. 32) on the grounds of insufficiency of the service of process, which Motion is currently pending before the Presiding Officer.

dated January 17 and 29, 2025 (Doc. Nos. 27 and 31)). Notwithstanding that information, as well as the filing of SEC's Motion to Dismiss on January 29, 2025, OOCL has done absolutely nothing to accomplish proper service, as should be expected given the terms of 46 C.F.R. § 502.113(c).

OOCL treats the matter of service cavalierly. While formal Hague Convention service is bothersome to OOCL, causing them to seek other means of service, it is important to SEC that formalities be followed here. SEC is being dragged into this United States proceeding, in a venue not of its choosing, on a novel, ultimately unsupportable claim. So OOCL's feigned claims of hardship fall on deaf ears, especially when it makes no verified representations whatsoever concerning the steps taken for service under the Hague Convention procedures and why they are not viable. It makes no representation because none can be made. OOCL's own delay in seeking Hague Convention service of process should not serve as a basis for allowing alternative service.

ARGUMENT

I. Hague Convention Procedures Will Cause No "Excess Use" of FMC Resources.

OOCL argues that following Hague Convention procedures would cause "an excess use of the Commission's resources that would result from service under the Commission" (Alt. Svc. Mem. at 2).

The typical means of service of complaints are set out in 46 C.F.R. § 502.113(b), i.e., service by the Secretary using first class mail or express mail service.

However, the relevant and applicable FMC Rule is not incompatible with the service procedures of the Hague Convention, given the terms of 46 C.F.R. § 502.113(c):

Alternative service by Complainant. The Complainant may serve the Complaint at any time after it has been filed with the Commission. If Complainant serves the complaint, an affidavit setting forth the method, time and place of service must be filed within five days following service.

Here, the proper method of service is that required by the Hague Convention which has to be done by OOCL. As all the mechanics of this process are to be accomplished by OOCL, the complainant, (with no involvement of the Secretary), there will be no “excess use” of the Commission’s resources

II. Other U.S. Litigation involving SEC is of No Relevance.

OOCL states “[N]otwithstanding Third-Party Respondent SEC’s appearance in scores of actions in the U.S. (*see e.g.*, Decl. of Stacey Normington, Ex. A in *Samsung Elecs. America, Inc. v. Orient Overseas Container Line, Limited et al.*, Dkt. No. 24-17, 2025 WL 516252 at * 2 (FMC Feb. 13, 2025), and the action brought by its subsidiary SEA, the Third-Party Respondents have refused to waiver or accept service.” (Alt. Svc. Mem. at 5).

OOCL presents no reasoned argument or citation for this demand.

First, OOCL presents no support that an action initiated by a U.S.-based corporate affiliate provides a basis for OOCL to demand that a related foreign-based entity must waive or accept service.

Second, a party’s waiver of a right in one matter has absolutely no relevance or impact on that party’s exercise of that right in a completely separate matter. For example, in *Barber v. New Jersey*, Civil Action No. 24-3202(ZNQ)(RLS), 2024 WL 4563911 (D.N.J. Oct. 24, 2024), the plaintiff sought to excuse improper service of process by arguing that service by the same (improper) method had been previously accepted by defendants in other cases. The court disagreed:

Plaintiff argues that in other cases involving the same subject matter, the defendants in those cases accepted service at the nursing homes...Thus, Plaintiff argues that service should be proper at the nursing home in this case. The Court rejects this argument. Plaintiff has provided no authority to support the notion that a different defendant’s agreement, or even the same defendant’s agreement, to accept service in one matter somehow waives its right to refuse service for another.

Id. at *3 n. 7 (citations omitted).

III. The Hague Convention Applies Here.

The Hague Convention is an international agreement designed to “simplify, standardize, and generally improve the process of serving documents abroad.” *Prem Sales, LLC v. Guangdong Chigo Heating and Ventilation Co., Ltd.*, 494 F. Supp 3d 404, 409 (N.D. Texas 2020)(quoting *Water Splash Inc. v. Menon*, 581 U.S. 271, 273 (2017)).

Use of the Convention procedures, when applicable, is mandatory if documents must be transmitted abroad to effect service. *See Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694, 699 (1988). *See also Smart Study Co., Ltd. v. Acuteye US*, 620 F. Supp. 3d 1382, 1389, 1393 (S.D.N.Y. 2022), *appeal dismissed*, 22-1810-cv, 2023 WL 3220461 (2d. Cir. May 3, 2003) (mandatory compliance with the Hague Convention means no email service on a defendant located in China); *Noco Company v. CF Group SZKMS Co., Ltd.*, 571 F. Supp. 3d 862, 867 (N.D. Ohio 2021)(Hague Convention compliance mandatory but its terms do not apply where the address of the person to be served is unknown); *Facebook, Inc. v. 9 Xiu Network (Shenzen) Technology*, 480 F. Supp. 3d 977, 983 (N.D. Cal. 2020)(“The Convention, however, doesn’t simply offer options for service abroad – options that plaintiffs can resort to or not at their discretion. Rather, unless an exception applies, the Convention-delineated methods of service...are exclusive.”).

In its motion, OOCL has not argued that the Hague Convention is inapplicable – the main thrust of its argument is that the Presiding Officer should set aside compliance with the Hague Convention by allowing alternative service.

IV. Alternative Service is Neither Justified nor Appropriate in this Matter.

When service has been challenged, the burden of proof to establish proper service is on the plaintiff, i.e., OOCL as Third-Party Complainant. *See Williams v. Bellagio Hotel & Casino*, 728 F. Supp. 3d 1166, 1169 & n.8 (D. Nev. 2024)(“When service is challenged the plaintiff ‘bears the burden of establishing that service was valid under Rule 4.’”)(quoting *Brockmeyer v. May*, 383 F.3d 798, 801 (9th Cir. 2004))

OOCL has proffered no information that Hague Service in Korea would likely fail or any reason why it did not promptly initiate such service months ago.

OOCL cites numerous cases for the proposition that a Court may order alternative service under Fed. R. Civ. P. 4(f)(3) and that the decision on the issue is within the discretion of the court (or here the Presiding Officer). However, prior to ordering alternative service, a district court may “require parties to show that they have reasonably attempted to effectuate service on the defendant and that the circumstances are such that the district court’s intervention is necessary.” *Federal Trade Commission v. Repair All PC, LLC*, Case No. 1:17 CV 869, 2017 WL 2362946, * 3 (N.D. Ohio May 31, 2017).

Typically, where the Hague Convention applies, alternative service is allowed only under *extraordinary circumstances*. For example, in *Dolls Kill, Inc. v. Yunye Apparel Retail, Ltd.*, Case No. 2:23-cv-01979-HDV-JPR, 2023 WL 6192699, *1 (C.D. Calif. Aug. 16, 2023), e-mail service on a Chinese defendant was allowed (China is a party to the Hague Convention and has lodged objections similar to those in Korea and Singapore). However, the motion for alternative service was granted based on an *ex parte* application which indicated that the only information the plaintiff had about the location of the defendant was an email address. Moreover, the plaintiff alleged there was a certain urgency in this copyright infringement matter arising from the possible running of

the statute of limitations.² Under the Hague Convention, where the physical address of a defendant cannot be ascertained, by its terms the Hague Convention does not apply. *See Noco Company*, 571 F. Supp. 3d at 867 (“[T]he Convention does not apply where the address of the person to be served is unknown.”). None of the elements leading to the result in *Dolls Kill* apply here.

Other examples of extraordinary circumstances include *In re: One Apus Container Ship Incident*, 22 Md. 3028 (PAE), 2022 WL 17370122, *1 and 4 (S.D.N.Y. Dec. 2, 2022)(unopposed motion for alternative service granted in multi-district litigation involving defendants in Japan, Panama, South Korea and Singapore); *Carrico v. Samsung Electronics Co., Ltd.*, Case No. 15-cv-02087-DMR, 2016 WL 2654392, *2 (N.D. Calif. May 10, 2016)(as several attempts by Korean authorities to serve (pursuant to the Hague Convention) an individual defendant were unsuccessful, alternative service allowed);³ *Sec. and Exch. Comm’n v. Richman*, Case No. 21-cv-01911-CRB, 2021 WL 9816612, *2 and 6 (N.D. Calif. Jul. 19, 2021)(as Hague Convention service was unsuccessful, alternative service allowed); *Compañía de Inversiones Mercantile, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.* 970 F.3d. 1269, 1294-95 (10th Cir. 2020)(affirming the district courts approval of “service on the [defendant]’s American counsel because the Mexican central authority did not or would not serve [the defendant], despite a well-known headquarters address.”); *Rio Properties, Inc., v. Rio International Interlink*, 284 F. 3d 1007, 1015 n.4 (9th Cir. 2002)(“A federal court would be prohibited from issuing a Rule 4(f)(3) order in contravention of an international agreement, including the Hague Convention referenced in Rule 4(f)(1). The parties agree, however, that the Hague Convention does not apply in this case because Costa Rica is not a signatory); *Nexxon Korea Corporation v. Ironmace Co., Ltd.*, Case No. C23-576-MLP,

² Copies of the *ex parte* application and supporting affidavit are attached as Appendix A. The reference to the running of the statute of limitations appears at page 6 of the application.

³ SEC was in fact a defendant in this litigation: as noted by the court: “Plaintiffs successfully served SEC through the Hague Convention procedures...” *Id.* at 2.

2023 WL 3599548, *1-3 (W.D. Wash. May 23, 2023), *aff'd*, No. 23-35600, 2024 WL 3493002 (9th Cir. Jul. 22, 2024)(although Hague Convention service on individual defendants in Korea had been initiated, plaintiff demonstrated sufficient urgency of imminent copyright violation to justify service by alternative means). No such exceptional circumstances pertain in this matter.

A court may generally impose “two...threshold requirements before authorizing alternative service under Rule 4(f)(3): (1) a showing that the plaintiff has reasonably attempted to effectuate service on the defendant, and (2) a showing that the circumstances are such that the court’s intervention is necessary’ ... ‘Effectively, this rule requires the moving party first to follow – or attempt to follow – international agreements and law in recognition of principles of comity and not to whimsically seek an alternative means of service.” *Ultra Int’l Music Publishing, L.L.C. v. Sony Music Enter.*, 24 Civ. 9149 (RA)(GS), 2025 WL 670842 (S.D.N.Y. Mar. 3, 2025)(quoting *Devi v. Rajapaska*, No. 11 Civ. 6634(NRB), 2012 WL 309605, *1 (S.D.N.Y. Jan. 31, 2012), *appeal dismissed*, No. 12-4081, 2013 WL 3855583 (2d Cir. Jan. 30, 2013) and *Gang Chen v. China Green Agric., Inc.*, No. 20 Civ. 9232 (MKV), 2021 WL 103306, at *2 (S.D.N.Y. Jan. 6, 2021), *appeal dismissed*, No. 22-1952-cv, 2023 WL 8539368 (2d Cir. Dec. 11, 2023)).

OOCL argues that it should not be held to these requirements and that it should be allowed to use alternative service so as to “avoid the multi-month delays and excess use of the Commission’s resources that would result from service under the Convention.” (Alt. Svc. Mem. at 2). First, the delay is wholly caused by OOCL’s own inaction; that should not form the basis of forcing some expedited relief. And the concern of resource usage (exclusively by OOCL) is an insufficient basis for a grant of alternative service:

Reduced to its essence, Plaintiffs’ justification for why they should not have to serve through the Hague Convention is that it would be ‘wasteful, expensive, and time-consuming’ and delay progress of their suit...But courts have consistently held that this is not a sufficient justification for alternative service where the

plaintiff has not first reasonably attempted to effect service through traditional means. *See, e.g., Agrana Fruit [US, Inc. v. Ingredienttrade, Inc., 23 Civ. 10147(ALC)(GS)], 2024 WL 773643, at *3 [(S.D.N.Y. Feb. 26, 2024)]*(finding alternative service unjustified based on claim that service through traditional means “would be time-consuming and cumbersome,” something “which could be said, to a greater of lesser degree, about service on any foreign defendant”); *Asia Maritime [Pacific Chartering Ltd. v. Comercializadora Columbia S.A. de C.V., No. 22-CV-10789(RA)], 2023 WL 372880, at *2 [(S.D.N.Y. Jan. 23, 2023)]*(“While the Court recognizes that service on foreign respondents [through the Hague Convention] may take time, Petitioner’s ‘desire to move quickly’ is not a basis to circumvent procedural rules.”); *Topping[v. Deloitte Touche Tohmatsu CPA Ltd., 14 Civ. 2814(ER)], 2014 WL 13118091, at *4 [(S.D.N.Y. Oct. 3, 2014)]*(“As for Plaintiffs’ claims that service in China is ‘difficult and time-consuming,’ the Court finds such arguments unavailing[.]”) (citation omitted); *KG Marine, LLC v. Vicem Yat Sanayi Ve Ticaret AS, 24 F. Supp. 3d 312, 315 (W.D.N.Y. 2014)* (denying motion for alternative service where “Plaintiff does not offer any reason explaining why it is in need of alternate means” except that service under the Hague Convention” ‘is very costly and time consuming’ ”).

Ultra Int’l Music at *6. The court also noted that the fourteen foreign defendants in the litigation “appear to be established corporate entities located in jurisdictions with well-functioning legal systems. Plaintiffs do not contend that they have had, or would have any difficulty...in securing the cooperation of the foreign countries in effecting service.” *Id.* at *5. The holding in *Ultra Int’l Music* should apply in this matter.

There is no legitimate reason to order alternative service in this matter. SEC is a very prominent Korean corporation with an extensive physical presence in that jurisdiction. Nor is there any reason to believe that Korea will reject service, or that the time to complete service will be excessive or result in undue cost.

Any delay in these proceedings has nothing to do with SEC and everything to do with OOCL. Had OOCL moved with alacrity in January 2025 to serve SEC under the Hague Convention as it could under 46 C.F.R. § 502.113(c), that process very possibly would have been complete by now or within the near term. Certainly OOCL cannot deny it is unaware of the terms

of 46 U.S.C. § 502.113(c) or that it had no knowledge of the requirements of the Hague Convention given SEC's filings.

Ordering alternative service would fly in the face of the mandatory nature of the Hague Convention and would do nothing more than allow a complainant such as OOCL to ignore its requirements for no good reason. "The Convention is a ratified, self-executing treaty and as such, is 'the supreme law of the land.'" *Facebook*, 480 F. Supp. 3d at 985 (quoting *Ackermann v. Levine*, 788 F.2d 830, 838 (2d Cir. 1986)). There are times when the Convention-delineated methods of service can be bypassed but: "These exceptions, however, are not limitless. They are either expressly identified in the Convention or they arise when the receiving country doesn't comply with the Convention. The exceptions, then, don't mean that the court and the plaintiff can regularly circumvent 4(f)(1). That interpretation would render the Convention optional, which the Advisory Committee's notes make clear is not the case." *Id.* at 986. *See also Stebbins v. Garcia Baz*, Case No. 24-cv-00398-LJC, 2024 WL 3447507, *4 (N.D. Calif. Jul. 16, 2024)(following *Facebook*, no Hague Convention exceptions asserted; service must be executed under the Hague Convention).

Because OOCL is not entitled to alternative service, there is no reason to discuss whether such alternative service can be accomplished by serving outside counsel who is not authorized to accept service and where that attorney has limited the appearance to asserting the Fed. R. Civ. P. 12(b)(5) affirmative defense. The shield of that special appearance should not be made a sword to deprive SEC of its right to proper service.⁴

⁴ "[I]t is axiomatic that only a general appearance by defendants results in a waiver of defect in the manner of service." *Topstone Communications, Inc. v. Chenyi Xu*, 603 F. Supp. 3d 493, 498 (S.D. Tex. 2022)(citing *Knox v. Summers*, 7 U.S. 496, 497, 3 Cranch 496, 2 L.Ed 510 (1806)).

CONCLUSION

For the reasons stated above, OOCL's Motion for Alternative Service must be denied.

Accordingly, in accordance with 46 C.F.R. §§ 502.69 and 502.71, Third-Party Respondent respectfully moves for an Order:

1. Denying OOCL's motion herein; and,
2. Granting SEC all such other and further relief as may be just and proper.

Dated: July 1, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein
James H. Hohenstein
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawnyc.com

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

CERTIFICATE OF SERVICE

I hereby certify that I have on this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow – *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Mills Black LLP
Counsel for Complainants
 - a. Peter F. Black
pblack@millsblack.com
 - b. H. Allen Black
hablack@millsblack.com
4. Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondents and Third-Party Complainants
 - a. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - b. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
5. Cozen O'Connor, P.C.
Counsel for Respondents and Third-Party Complainants
 - a. Wayne R. Rohde
wrohde@cozen.com
 - b. Christopher Raleigh
craleigh@cozen.com

Dated: July 1, 2025

By: /s/ James H. Hohenstein

James H. Hohenstein
Hohenstein & Parkinson, LLP

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

**SEC's Opposition to OOCL's Motion for
Alternative Service**

Docket No. 24-17

Appendix A

1 Scott Alan Burroughs (SBN 235718)
scott@donigerlawfirm.com
2 Trevor W. Barrett (SBN 287174)
tbarrett@donigerlawfirm.com
3 Frank R. Trechsel (SBN 312199)
ftrechsel@donigerlawfirm.com
4 DONIGER / BURROUGHS
5 603 Rose Avenue
6 Venice California 90291
7 Telephone: (310) 590-1820

8 **UNITED STATES DISTRICT COURT**
9 **CENTRAL DISTRICT OF CALIFORNIA**

10 DOLLS KILL, INC., a California
11 corporation,
12 Plaintiff,
13 v.

14 YUNYE APPAREL RETAIL LTD., d/b/a
15 "Cutie Peachy", a business entity of form
16 unknown, et al.,
17 Defendants.

Case No.: 2:23-cv-01979-HDV-JPRx
Hon. Hernán D. Vera Presiding

**PLAINTIFF'S EX PARTE
APPLICATION FOR ORDER
AUTHORIZING ALTERNATE
MEANS OF SERVICE ON
DEFENDANT YUNYE APPAREL
RETAIL LTD; MEMORANDUM
OF POINTS AND AUTHORITIES**

TO THE HONORABLE COURT, ALL PARTIES, AND THEIR
RESPECTIVE COUNSEL OF RECORD:

PLEASE TAKE NOTICE THAT Plaintiff Dolls Kill (“Dolls Kill” or
“Plaintiff”) hereby moves this Honorable Court on an *ex parte* basis authorizing
alternative service of process on Defendant Yunye Apparel Retail Ltd. d/b/a/ “Cutie
Peachy” (“Cutie Peachy”), brought pursuant to Federal Rule of Civil Procedure
4(f)(3).

This *ex parte* application is made on the grounds that:

1. An order allowing for alternative means of service does not require
Plaintiff to attempt service by other means authorized by Rule 4 before
petitioning this Court to allow service on Cutie Peachy by email under Rule
4(f)(3).
2. The current timeframe for service of process under the Hague Service
Convention via the Chinese Central Authority is generally 6 months.¹
3. Cutie Peachy controls its websites where the infringing uses were made.
Trechsel Decl. ¶ 2.
4. Counsel for Plaintiff sent a copy of the Summons and Complaint, along
with a Waiver of Service form, to Cutie Peachy’s address obtained from
their website (<https://cutiepeach.myshopify.com/>). Trechsel Decl. ¶ 4,
Exhibit 2.
5. This correspondence was successfully delivered and not returned as
“undeliverable.” Trechsel Decl. ¶ 4.
6. Counsel for Plaintiff has yet to receive any response from Defendant.
7. Plaintiff has conducted diligent and thorough research into Defendants’
whereabouts and service of process under the Hague Convention but has

¹ <https://www.hcch.net/en/states/authorities/details3/?aid=243> (Page last updated in
January 2023)

encountered a dearth of publicly available information that has stymied efforts to effect service of process; Trechsel Decl. ¶ 5, Exhibit 3.

8. An order allowing for alternative means of service is warranted in this matter because service under the Hague Convention via the Republic of China's Central Authority will delay this proceeding for at least 6 months,² and more likely years; service at Defendant's registered electronic address will be most likely to result in actual notice to Defendant and would afford it the opportunity to present their objections. Exhibit 3.

9. Courts of this District have previously held that email service on foreign defendants located in Hague signatory nations is proper under Rule 4(f)(3).³

This Motion is based on this Notice, the Memorandum of Points and Authorities, and the pleadings, file and other matters that may be presented at the hearing. It is respectfully requested that the relief sought herein be granted.

In conformity with this Court's Civil Local Rules, Plaintiff's Counsel informed Defendants that any opposition must be filed within twenty-four (24) hours of the filing of this application. Trechsel Decl. ¶ 4. No opposing counsel has appeared on behalf of Defendant, and thus Plaintiff has no way of ascertaining opposing counsel's position or whether Defendant intends to file an opposition.

///

///

///

² <https://www.hcch.net/en/states/authorities/details3/?aid=243>

³ See *Browne v. Donalds*, No. 2:21-CV-02840-AB-AFM, 2023 WL 4626697, at *6 (C.D. Cal. Apr. 13, 2023); see also *Art Records, LLC v. YouTube, LLC, et al.*, No. 2:22-cv-05179-DSF-KS, Dkt. No. 126 (C.D. Cal. June 14, 2023.)

1 The contact information for Defendant, who was served with notice as of the
2 below date, is as follows: service_cutiepeachy@outlook.com.

3
4 Dated: August 14, 2023

By: /s/ Scott A. Burroughs
Scott Alan Burroughs, Esq.
Trevor W. Barrett, Esq.
Frank Trechsel, Esq.
DONIGER / BURROUGHS
Attorneys for Plaintiff

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Pursuant to Federal Rule of Civil Procedure 4(f)(3), Plaintiff Dolls Kill (“Dolls Kill”) requests this Court’s authorization to serve process by electronic means by sending an e-mail to the email address of Defendant. Plaintiff submits that providing notice via electronic mail is reasonably calculated under all circumstances to apprise Defendant of the pendency of the action and afford them the opportunity to present their objections.

Plaintiff filed the instant copyright infringement lawsuit seeking relief against Defendant Cutie Peachy, a business entity providing online merchandise, who infringed upon Plaintiff’s copyrighted works by copying, exploiting, reproducing, and distributing unauthorized uses of Plaintiff’s original works. Declaration of Frank R. Trechsel (“Trechsel Decl.”) ¶ 1,2. Plaintiff requests that it be allowed to serve the Complaint on Cutie Peachy via email at the address identified on their website.

Service by electronic means would allow this matter to proceed expeditiously and would apprise Cutie Peachy of the pendency of the action and afford it the opportunity to respond without unnecessary delays. Electronic service is further appropriate and necessary in this case because Cutie Peachy directs its online content and business in the United States by primarily relying on electronic communications to communicate with its third-party service providers and customers. Trechsel Decl. ¶ 3, 4. Authorizing service of process solely via electronic mail will benefit all parties and the Court by ensuring that Defendant receives prompt notice of this action, thus allowing this action to move forward expeditiously. Absent the ability to serve Cutie Peachy in this manner, Plaintiff will almost certainly be left without the ability to pursue a final judgment. Furthermore, Plaintiff has attempted to contact Defendant to secure a waiver of service in this case at the publicly available

1 email address identified in this application, and while Plaintiff did not receive a
2 response from Defendant, the email was successfully delivered and was not bounced
3 back as “undeliverable.” Trechsel Decl. ¶ 4. Accordingly, this application should be
4 granted.

5 **II. ARGUMENT**

6 Rule 4(f)(3) of the Federal Rules of Civil Procedure allows this Court to
7 authorize service of process “in a place not within any judicial district of the United
8 States” and by any means “not prohibited by international agreement as may be
9 directed by the court.” *Rio Properties, Inc. v. Rio Int’l Interlink*, 284 F.3d 1007, 1014
10 (9th Cir. 2002). In this instance, both prongs are satisfied.

11 Furthermore, it is well established that alternative service under Rule 4(f)(3) is
12 “neither a last resort nor extraordinary relief,” but is just “one means among several
13 which enables service of process on an international defendant,” even when sought
14 via *ex parte* application. *Id.* at 1015; See also *Hangzhou Inshot Tech Co. v. Studio*
15 *Video Downloader X*, No. 21CV00397CBMMRWX, 2021 WL 3265021, at *1 (C.D.
16 Cal. Jan. 21, 2021).

17 **A. This Ninth Circuit permits the authorization of Electronic Mail**

18 **Service Pursuant to Federal Rule of Civil Procedure 4(f)(3)**

19 Under Federal Rule of Civil Procedure 4(f)(3), this Court has the discretion to
20 approve an alternative service of process, such as email, to a Defendant like Cutie
21 Peachy, whose online business embraces this form of communication and provides
22 an e-mail address for all contact purposes. Trechsel Decl. ¶ 3, Exhibit 1. In fact, they
23 even encourage contact by stating on their website: “Every reaching-out is
24 welcomed!”⁴ Exhibit 1. Hence, alternative service of process is within the Court’s
25 discretion and is appropriate in this case.

26 ///

27 _____
28 ⁴ <https://cutiepeach.myshopify.com/pages/contact-us> (Last visited July 14, 2023)

1 In *Rio*, the court held “without hesitation” that service of process via email to
2 an online foreign entity defendant was “constitutionally acceptable” and under the
3 circumstances, “reasonably acceptable.” *Id.* at 1017. The court explained that this
4 means of service was appropriate because the defendant conducted its business over
5 the Internet, used e-mail regularly in its business, and encouraged parties to contact it
6 via e-mail. *Id.* Similarly, other courts have determined that, where defendants
7 conduct commercial internet activities, email service is reasonably calculated to
8 apprise them of the suit and thus comports with due process. *See also Facebook, Inc.*
9 *v. Banana Ads, LLC*, 2012 WL 1038752, at *1–2 (N.D. Cal. Mar. 27, 2012)
10 (authorizing email service on foreign defendants allegedly infringing Facebook
11 trademark on websites); *Eastwood v. Sera Labs, Inc.*, No. 220CV06503RGKJDE,
12 2021 WL 5169292, at *4 (C.D. Cal. Feb 19, 2021) (holding that service via e-mail
13 and Skype messages were reasonable ways to notify the foreign defendant who relied
14 on electronic communication to promote its products).

15 In this case, Plaintiff’s request to effect service on Cutie Peachy via email
16 comports with constitutional notions of due process because it is “reasonably
17 calculated, under all the circumstances, to apprise interested parties of the pendency
18 of the action and afford them an opportunity to present their objections.’ *Rio* at 1016.
19 Cutie Peachy maintains an online presence through its website by enabling customers
20 to contact it through its email address such that email service is likely the most
21 reliable way of apprising Cutie Peachy of this action. Exhibit 1. Hence, using this e-
22 mail address to deliver Plaintiff’s Complaint establishes the reliability of this method
23 of service under Rule 4(f)(3) and is the most effective and efficient way to provide
24 the notice due process requires.

25 Additionally, Plaintiff need not attempt service by other means authorized by
26 Rule 4 before petitioning this Court’s to allow service on Cutie Peachy by email
27 under Rule 4(f)(3). In *Rio*, the Ninth Circuit concluded that the “plain language” of
28

1 the Rule only establishes two limitations of alternative methods of service: service
2 “must be (1) directed by the court; and (2) not prohibited by international
3 agreement.” *Id.* at 1015. Also, the court reasoned that the plaintiff “need not attempt
4 service through all feasible means before turning to Rule 4(f)(3)” and explained that
5 Rule 4(f)(3) is “neither a last resort nor extraordinary relief.” *Id.* Instead, it is just
6 “one means among several which enables service of process on an international
7 defendant.” *Id.*

8 Simply put, this Court has the discretion to authorize electronic mail service of
9 process against Defendant Cutie Peachy.

10 **B. Email Service on Defendant is not Prohibited by International**
11 **Agreement and Is Reasonably Calculated to Apprise them of this**
12 **Action.**

13 Electronic mail service of process is not prohibited by international agreement
14 and is reasonable to apprise Defendant Cutie Peachy. The second limitation under
15 Rule 4(f)(3) stipulates that the method of service is not prohibited by international
16 agreement is also met. The Hague Convention applies to Defendant, whom the
17 Plaintiff is informed and believes is located in the People’s Republic of China, a
18 signatory to the Hague Convention.⁵ Trechsel Decl. ¶ 5, Exhibit 3. While China has
19 formally objected to service under Article 10 of the Hague Convention and does not
20 permit service of process via postal channels,⁶ it is well established that “a foreign
21 nation's objection to Article 10 of the Hague Convention—which does not list e-mail
22 as an accepted method of international service—does not constitute an express

23 _____
24 ⁵ China is a party to the Hague Convention on the Service Abroad of Judicial and
25 Extra Judicial Documents in Civil and Commercial Matters. See U.S. Department
26 of State – Bureau of Consular Affairs,
27 [https://travel.state.gov/content/travel/en/legal/Judicial-Assistance-Country-](https://travel.state.gov/content/travel/en/legal/Judicial-Assistance-Country-Information/China.html)
28 [Information/China.html](https://travel.state.gov/content/travel/en/legal/Judicial-Assistance-Country-Information/China.html) (last visited July 12, 2023); Hague Conv. Art. 10(a), 20
U.S.T. 361

⁶ *Id.*

1 rejection of service by e-mail.” *Godfrey v. Princess Cruise Lines, Ltd.*, No. CV-15-
2 01975-MWF-PLAX, 2016 WL 11756851, at *2 (C.D. Cal. June 17, 2016). See also
3 *Shinde v. Nithyananda Found.*, No. EDCV1300363JGBSPX, 2014 WL 12597121, at
4 *7 (C.D. Cal. Aug. 25, 2014)(“The Court agrees with the numerous courts that have
5 held that service by email does not violate any international agreement where the
6 objections of the recipient nation are limited to those means enumerated in Article
7 10”). Although Article 10(a) references “postal channels,” it does not mention service
8 by electronic means such as email, online messaging systems, or any other electronic
9 communications. Trechsel Decl. ¶ 5, Exhibit 3. Therefore, China’s objection to
10 service by “postal channels” does not prohibit service via “electronic means.” For
11 this reason, courts have held that the Hague Convention does not prohibit service by
12 electronic means notwithstanding China’s objection to service by “postal channels.”
13 Trechsel Decl. ¶ 5, Exhibit 3. *Microsoft Corp. v. Goldah.com Network Tech. Co.*, No.
14 17-CV-02896, 2017 WL 4536417, at *4 (N.D. Cal. Oct. 11, 2017) (“China’s
15 objection to Article 10 does not prohibit the email service the Court ordered in the
16 instant case.”); *see also Facebook* at *2 (where Plaintiff cited cases in this circuit
17 where courts held that service by email to foreign defendants, one being China, did
18 not violate the Hague Convention); *Williams-Sonoma Inc. v. Friendfinder Inc.*, No.
19 C06-06572, 2007 WL 1140639, at *2 (N.D. Cal. Apr. 17, 2007) (allowing email
20 service of defendants located in countries that have objected to service via postal
21 channels); Because the Hague Convention does not prohibit service on a Chinese
22 company through electronic means, this Court should allow Plaintiff to effect service
23 through email under Rule 4(f)(3).

24 Further, the current Hague service time in China will take up to around 6
25 months.⁷ Courts in the past have recognized that service in China can be slow; *see*

26 _____
27 ⁷ <https://www.hcch.net/en/states/authorities/details3/?aid=243> (Page last updated in
28 January 2023)

1 *SEC v. China Sky One Med., Inc.*, NO CV1207543MWFMANX, 2013 WL
2 12314508, at *1 (where the plaintiff was informed that it could take six months or
3 longer to effect successful service); *Leo Middle E. FZE v. Zhang*, No. 21-CV-03985-
4 CRB, 2021 WL 11593016, at *6, (N.D. Cal. 2021) (holding that service by e-mail
5 and WeChat was reasonable because of service delays in China, cross-defendant's
6 unpredictable travel schedule, and cross-claimants "good faith efforts" to request
7 waiver of service). Therefore, requiring Plaintiff to serve Cutie Peachy through the
8 Central Authority in China under the Hague Service Convention, would delay its
9 ability to litigate the matter for possibly a year, by which time the statute of
10 limitations on his copyright infringement claims may run.

11 United States District Courts routinely grant alternative service of process
12 notwithstanding the availability of process through the Hague Convention. *See. e.g.*
13 *Gianni Versace, S.P.A. v. Yong Peng, et al.*, No. 18-cv-5385 (N.D. Ill. Feb. 27, 2019)
14 ("Nor must Versace attempt service by contacting the Chinese Ministry of Justice, as
15 suggested by [defendant]. The plain language of Rule 4 requires only that service be
16 made by the court and not prohibited by international agreement."); *In re Potash*
17 *Antitrust Litig.*, 667 F. Supp. 2d 907, 930 (N.D. Ill. 2009) ("plaintiffs are not
18 required to first attempt service through the Hague Convention."); *see also Strabala*
19 *v. Zhang*, 318 F.R.D. 81, 114 (N.D. Ill. 2016) (authorizing alternative service
20 pursuant to Fed. R. Civ. P. 4(f)(3)). The Hague Convention also does not preclude
21 service by e-mail. Trechsel Decl. ¶ 5, Exhibit 3. *See also Sec. & Exch. Comm'n v.*
22 *China Sky One Med., Inc.*, No. CV1207543MWFMANX, 2013 WL 12314508, at
23 *2–3 (C.D. Cal. Aug. 20, 2013) (Noting that "numerous courts have held that service
24 by e-mail does not violate the Hague Convention, even when the destination country
25 has objected to service through postal channels under Article 10" and allowing email
26 service on a defendant located in China.)

27 ///

1 Thus, the Hague Convention does not prohibit electronic mail nor prevent this
2 Court from directing email service under Rule 4(f)(3). As such, Plaintiff respectfully
3 requests to serve Defendant via electronic mail which would be the most appropriate
4 and reasonably calculated means to provide notice.

5 **III. CONCLUSION**

6 Plaintiff respectfully requests that the Court grant the Plaintiff's request to
7 serve the Defendant via e-mail. Plaintiff further requests that this Court allow for
8 service of process to be deemed effective upon successful transmittal of process to
9 Defendant's electronic address mentioned above. If granted, Plaintiff will
10 immediately effect service of process electronically and file the appropriate affidavit
11 detailing the date and manner of service.

12
13
14 Date: August 14, 2023

Respectfully submitted,

By: /s/ Scott A. Burroughs
Scott Alan Burroughs, Esq.
Trevor W. Barrett, Esq.
Frank Trechsel, Esq.
DONIGER / BURROUGHS
Attorneys for Plaintiff

1 Scott Alan Burroughs (SBN 235718)

scott@donigerlawfirm.com

2 Trevor W. Barrett (SBN 235718)

3 tbarrett@donigerlawfirm.com

Frank R. Trechsel (SBN 312199)

4 ftrechsel@donigerlawfirm.com

5 DONIGER / BURROUGHS

603 Rose Avenue

6 Venice, California 90291

7 Telephone: (310) 590-1820

8 Attorneys for Plaintiff

9 **UNITED STATES DISTRICT COURT**

10 **CENTRAL DISTRICT OF CALIFORNIA**

11 DOLLS KILL, INC., a California
12 corporation,

13 Plaintiff,

14 v.

15 YUNYE APPAREL RETAIL LTD., d/b/a
16 "Cutie Peachy", a business entity of form
unknown, et al.,

17
18 Defendants.
19
20
21
22
23
24
25
26
27
28

Case No.: 2:23-cv-01979-HDV-JPRx
Hon. Hernán D. Vera Presiding

**DECLARATION OF FRANK R.
TRECHSEL IN SUPPORT OF
PLAINTIFF'S *EX PARTE*
APPLICATION FOR ORDER
AUTHORIZING ALTERNATE
MEANS OF SERVICE**

Declaration of Frank R. Trechsel

I, Frank R Trechsel, am an attorney at Doniger / Burroughs and am counsel for Dolls Kill, Inc., (“Plaintiff” or “Dolls Kill”) in this action. I submit this Declaration in support of Plaintiff’s *ex parte* application for an Order authorizing alternative service of process (“Ex Parte”) upon Defendant Yunye Apparel Retail, Ltd. d/b/a Cutie Peachy (“Defendant” or “Cutie Peachy”). I have personal knowledge of each of the following facts stated in this declaration:

1. My firm caused this lawsuit to be filed against Defendant.

2. Upon information and belief, Defendant operates the “Cutie Peachy” website on which it has reproduced, distributed, transmitted, and offered for purchase copyrighted works for which Dolls Kill is the sole owner.

3. Upon information and belief, Defendant is located in China. Attached hereto as **Exhibit 1** is a true and correct screen capture from Defendant’s website, which lists Defendant’s contact information. The email provided for the Defendant can be found in the table below.

YUNYE APPAREL RETAIL, LTD.	service_cutiepeachy@outlook.com
----------------------------	---------------------------------

4. My firm emailed the operative Complaint and a Waiver of Service form on April 28, 2023, to Defendant’s e-mail address. The email was not returned as “undeliverable.” Attached hereto as **Exhibit 2** is a true and correct copy of said email to Defendant.

5. I reviewed the Hague Convention on the Service Abroad of Judicial and Extra-Judicial Documents in Civil and Commercial Matters¹ (“Hague Convention”) to which China is a signatory. China has declared that it opposes the service of documents in its territory by the alternative means of service outlined in Article 10 of the Convention, including the service of process by postal channels.

¹ Available at https://www.courts.ca.gov/partners/documents/ea_HagueService.pdf (last visited July 14, 2023).

1 However, the Hague Convention does not preclude service by email, and the
2 declaration to the Hague Convention filed by China does not expressly prohibit
3 email service. A true and correct copy of the Hague Convention on the Service
4 Abroad of Judicial and Extra-Judicial Documents in Civil and Commercial
5 Matters, and a list of the signatory Members, are attached hereto as **Exhibit 3**.

6 6. Upon information and belief, Defendants are not represented by
7 counsel.

8 I declare under the laws of the United States of America and the penalty of
9 perjury that the foregoing is true and correct.

10
11 Dated: August 14, 2023

By: /s/ Frank R. Trechsel
Frank R. Trechsel
Declarant